

VA.4 Where to File Directory

The offices a Virginia owner-builder deals with, how to find each one for your parcel, and a page to write down what you confirmed.

Before you use this document

This is a process reference, not legal advice. Virginia has one statewide building code, but every county, city, and town enforces it through its own local building department, with its own forms, fees, and portal. Confirm every item with the building department that will issue your permit before you rely on it.

ONE CODE, LOCAL COUNTERS

The code is statewide and exclusive: the USBC "*shall supersede the building codes and regulations of the counties, municipalities and other political subdivisions and state agencies*" (§ 36-98). But the State issues no permits — "*enforcement of the provisions of the Building Code for construction and rehabilitation shall be the responsibility of the local building department*" (§ 36-105), and a locality without one must contract the function to another jurisdiction or agency. So your permit counter is your county's, city's, or town's building department — same code everywhere, different forms, fees, and portals at every counter.

Settle this first — it decides everything else

Before you gather a single document, confirm **which locality issues your permit** — county, city, or town. Not every locality runs its own building department: § 36-105 lets one contract the function to another jurisdiction, so a town lot may actually file with the county. Call the building department you believe covers your parcel, give them the parcel ID, and ask directly. Filing with the wrong office costs you weeks.

HOW TO FIND EACH OFFICE

Finding the right office for your parcel

Office	How to find it
Building department (permits, plan review, inspection scheduling)	Search "[<i>your locality</i>] Virginia building permit" and stay on the .gov result. Many localities run an online permit portal; ask which one and register before you file.
Planning / zoning (setbacks, use, floodplain)	Often a separate department from the building office, sometimes the same counter. Ask the building department who confirms zoning and setbacks for your parcel — and who the floodplain administrator is, if your parcel touches a mapped floodplain.

Finding the right office for your parcel

Office	How to find it
Local health department (septic, private wells)	Search "[your locality] health department environmental health." Onsite sewage and private wells are VDH programs filed at the local health department — not the building office (see VA.2, section C).
VDOT district land use permits (driveway entrance on a state-maintained road)	Unless you are in a city, a town that maintains its streets, or Henrico or Arlington, assume your road is VDOT's. Start at vdot.virginia.gov → Land Use Permits, which routes you to the district office for your locality; online filing is available.
Erosion & stormwater (VESMP)	The local VESMP authority issues your land-disturbance approval and holds the agreement-in-lieu-of-a-plan form. Ask the building department which office runs erosion/stormwater for your locality — no land-disturbing activity may begin before its approval.

One statewide code, locally enforced: § 36-98; § 36-105. Septic and wells via local health departments: 12VAC5-610-250; 12VAC5-630-230. Land-disturbance approval before any disturbance: § 62.1-44.15:34(A). VDOT entrance permits issued by district staff: 24VAC30-73-20(C). Verified August 2026.

YOUR DIRECTORY — FILL THIS IN BEFORE YOU NEED IT

Confirm each entry by phone rather than copying it from a search result, and write the date you confirmed it. Note the name of the person you spoke to — in a local office, having a name is worth more than having a number.

BUILDING DEPARTMENT — issues the permit; schedules inspections

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

PLANNING / ZONING — setbacks, zoning verification, floodplain

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

LOCAL HEALTH DEPARTMENT — septic and private well (VDH programs)

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

VDOT DISTRICT — LAND USE PERMITS — driveway entrance on a state-maintained road

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

EROSION & STORMWATER (VESMP) — land-disturbance approval; agreement in lieu of a plan

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

ELECTRIC UTILITY — temporary construction power and permanent service

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

WATER & SEWER — public connection, tap fees — or N/A if well/septic

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

MECHANICS' LIEN AGENT — your option, and a smart one — see VA.2 and VA.5

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

STATE-LEVEL CONTACTS

These are stable and worth knowing. Phone numbers are left for you to confirm — a wrong number printed in a kit is worse than no number.

State agencies and what each is actually for

Agency	Why you would contact them	Website
DHCD — State Building Codes Office	Writes the USBC and issues code interpretations — the place to settle a code question your building official cannot (sbco@dhcd.virginia.gov).	dhcd.virginia.gov → codes
DPOR — Board for Contractors	Contractor and tradesman licensing. Verify every subcontractor's license here before you sign — License Lookup is on the front page.	dpor.virginia.gov
VDH — Onsite Sewage & Water Services	The septic and private-well program. Applications file at your local health department; the state page holds the forms and the program rules.	vdh.virginia.gov
DEQ	Oversees the local erosion/stormwater (VESMP) programs and runs the construction general permit for larger disturbances.	deq.virginia.gov

State agencies and what each is actually for

Agency	Why you would contact them	Website
VDOT — Land Use Permits	Entrance permits on state-maintained roads, issued by district staff. The land-use-permits page routes you to your district and the LUP forms.	vdot.virginia.gov

TEN OF VIRGINIA'S BUSIEST PERMIT COUNTERS

If your lot is in one of these, here is the department and the official domain — go to the domain and search the department name rather than trusting an ad-cluttered search result. This is a list of large issuers, not a ranking. If your locality is not here, the search patterns above find it in two minutes.

Department names and domains confirmed on each official site, August 2026

Jurisdiction	Building department	Official domain
Loudoun County	Department of Building and Development	loudoun.gov
Chesterfield County	Department of Building Inspection	chesterfield.gov
Prince William County	Development Services — Building Development Division	pwcva.gov
Fairfax County	Land Development Services (LDS)	fairfaxcounty.gov/landdevelopment
Henrico County	Department of Building Construction and Inspections	henrico.gov
City of Virginia Beach	Planning & Community Development — Permits & Inspections	planning.virginiabeach.gov
City of Chesapeake	Department of Development & Permits	cityofchesapeake.net
City of Suffolk	Planning & Community Development	suffolkva.us
Spotsylvania County	Building Department (Community Development)	spotsylvania.va.us
Stafford County	Building Permits & Inspections	staffordcountyva.gov

Sources (verified August 2026): the USBC supersedes local codes — § 36-98; local enforcement is mandatory, and localities without a department contract it — § 36-105; both at law.lis.virginia.gov. Agency roles and URLs confirmed on each agency's own site. Locality department names and domains confirmed on each official site; Census Building Permits Survey data put Loudoun and Chesterfield at the top tier of 2024 issuers — the table is otherwise unranked. Note for driveway purposes: Henrico and Arlington counties maintain their own road systems, so an entrance there is a county matter, not VDOT's.